



Policy

Rights of Patients in Mental Health

Policy code EMHS: 170

Original endorsement date July 2016

Date of current endorsement July 2022

Version 2.00

Functional subgroup

Summary East Metropolitan Health Service is committed to ensuring the rights of patients are respected by the health service. This commitment includes ensuring patients are made aware of their rights under the Mental Health Act 2014.

Policy owner Executive Director Mental Health

Contact

Review date July 2025

NSQHS Standard (second edition)

Status Active



1. Background

1.1. About this document

East Metropolitan Health Service is committed to ensuring the rights of patients are respected by the health service. This commitment includes ensuring patients are made aware of their rights under the Mental Health Act 2014

EMHS patients are to be given a copy of their rights and responsibilities at the time of admission to the hospital.

2. Charter of Mental Health Principles

Under the Mental Health Act 2014, a person or body performing a function under the Act must have regard to the principles set out in the Charter of Mental Health Care Principles.

This is a set of 15 principles scheduled to the Act. Mental Health Services must make every effort to comply with the Charter when providing treatment, care or support to persons experiencing mental illness

Mental health services should ensure that a poster of the Charter is on view within all facilities and that a pamphlet explaining the Charter be made available to patients and carers, close family members and other person support persons.

If mental health services fail to comply with the Charter this may form the basis of a complaint to the Chief Psychiatrist or the Health and Disability Services Complaints Office (HaDSCO)

Refer to [Mental Health Commission](#) Patients Rights Brochures website

Refer to [Charter of Mental Health Care Principles - Mental Health Act 2014](#)

Refer to Appendix A rights of Patients in Mental Health Care Principles

3. Explanation of Rights of Patients

Refer to Western Australia [Mental Health Act 2014](#) Sections 243, 246

Patients' rights are to be explained in the following circumstances as shown in table

The explanation is to be relevant having regard to the particular situation of the person, with respect to:

- legal status
- detention
- examination
- right to an examination or interview with a psychiatrist
- applying for a review
- access to a mental health advocate
- the making of a complaint

- contact with people outside the hospital, whether by receiving visitors, by telephone, by post or otherwise
- storage and use of personal possessions
- applying to the State Administrative Tribunal for a review of a decision or order of the Mental Health Tribunal.

Circumstance	Person responsible
Patient is admitted as an involuntary patient	Person in charge of the authorised hospital
Patient is admitted as an involuntary inpatient under an inpatient treatment order	Person in charge of the authorised hospital
Patient is admitted as a mentally impaired accused under the MIA Act	Person in charge of the authorised hospital
Inpatient treatment order is made	Psychiatrist who makes the order
Patient is granted leave	Psychiatrist who grants the leave of absence
CTO is made in respect of a patient	Psychiatrist who makes the CTO
Person is referred for examination at an authorised hospital	Medical practitioner or authorised mental health practitioner who makes the order
Person is referred for examination at a place other than an authorised hospital	Medical practitioner or authorised mental health practitioner who makes the order

The person responsible for providing the explanation must ensure that a carer, close family member or other personal support person of the person is also provided with an explanation of the person's rights, even if the person has not consented to the information being provided.

The explanation, whether to the person or to their personal support person, must be in a language, form of communication and terms that the person is likely to understand, using any means of communication that is practicable and using an interpreter if necessary and practicable

Refer to [Mental Health Act 2014](#) Sections 245, 9(2)

3.1. Patients' Rights of Access to Records

With certain exceptions detailed below), a person provided with treatment or care by a mental health service is entitled to inspect and to be given a copy of any relevant document relating to the person that is in the possession or control of the mental health service.

This right applies notwithstanding any other right to access that the person has under other legislation (e.g. the Freedom of Information Act 1992).

The person in charge of the mental health service must ensure that the request is dealt with as soon as practicable

Refer to [Mental Health Act 2014](#) Sections 248(1) (2)

3.2. Exceptions to Patient right to Access to Records

A person is not entitled to access a document relating to their treatment or care by a mental health service if:

A psychiatrist reasonably believes disclosure would pose a significant risk of serious harm to, or to the health or safety of, the person or another person

Disclosure would reveal personal information about a third party or confidential information that does not relate to the person, and the third party has not consented to the disclosure

The person is or was a mentally impaired accused required to be detained at an authorised hospital and the document came into existence for the purposes of the Prisons Act 1981.

A person not entitled to access a document relating to their treatment or care may nominate a medical practitioner or legal practitioner (or both) to inspect and be given a copy of the relevant document. This nominated person is entitled to inspect and be given a copy of the document as soon as practicable.

Note: section 251 of the Mental Health Act 2014 provides that the nominated person must not disclose any information in the document to the person who has been refused access.
Penalty: a fine of \$5000.

Refer to [Mental Health Act 2014](#) Sections 249,250,251

4. Rights Respect of Admission

A voluntary patient can only be admitted as an inpatient of an authorised hospital by a medical practitioner. Any such admission must be confirmed by a psychiatrist (unless a psychiatrist admitted the patient).

A medical practitioner who refuses to admit (or a psychiatrist who refuses to confirm the admission of) a voluntary patient as an inpatient must inform the patient or the reasons for refusal and advise them of the available avenues for complaint.

If the advice is provided orally, the medical practitioner or psychiatrist must offer to confirm the advice in writing. If the patient accepts this offer, the medical practitioner or psychiatrist must confirm the advice in writing as soon as practicable

Refer to [Mental Health Act 2014](#) Sections 255,256,257

4.1. Rights with Respect to Personal Possessions

Each patient admitted to an authorised hospital is to be provided with a secure facility in which to store personal possessions, and is to be allowed to use those possessions.

Personal possessions means:

- articles of clothing, jewellery or footwear;
- articles for personal use; or
- aids for daily living or medical prostheses that are usually used by the patient as means of assistance or to maintain the patient's dignity.

The person in charge of the authorised hospital is not obligated to store or to permit use of an item that, in his/her opinion, may pose a risk of harm to the patient or another person or that is not appropriate to store at the authorised hospital.

Property belonging to a patient which has been left at the hospital for a period of six months following the patient's discharge may be disposed of by sale or otherwise if:

- at least one month's notice of the intention to do so has been given to a carer, close family member or other personal support person of the person; and
- none of the persons listed above claims the article within that six-month period.

Refer to [Mental Health Act 2014](#) Section 259

4.2. Rights to Interview with Psychiatrist

At any time while admitted by a hospital, a patient is entitled to an interview with a psychiatrist within a reasonable time of requesting the interview.

However, a psychiatrist may refuse a patient's request for an interview if the patient has a history of making repeated requests for interview and the psychiatrist is satisfied that the request is unreasonable.

Refer to [Mental Health Act 2014](#) Section 260

5. Rights of Freedom of Lawful Communication

A patient has the right of freedom of lawful communication, which includes the freedom to do any of the following in reasonable privacy:

- see and speak with other people in the hospital;
- receive visits
- send and receive telephone calls
- send and receive mail
- send and receive electronic communications
- receive visits from and otherwise have contact with their legal practitioner at all reasonable times
- receive visits from and otherwise have contact with a mental health advocate at any time
- receive visits from, and be otherwise contacted by, other people at all reasonable times.

5.1. Restrictions on Freedom of Communication

A psychiatrist may prohibit or limit a patient's right of freedom of lawful communication (excepting the right to have contact with their legal practitioner or a mental health advocate) if satisfied that the prohibition or limitation is in the patient's best interests.

A psychiatrist may prohibit or limit a patient's right to receive visits from their legal practitioner or a mental health advocate if satisfied that there is a serious risk to the safety of the legal practitioner or mental health advocate and prohibiting or limiting the right is reasonably necessary to reduce that risk.

A psychiatrist cannot make an order prohibiting or limiting a patient's right to be otherwise contacted by their legal practitioner or a mental health advocate.

Any order made to prohibit or limit a patient's right of freedom of lawful communication must be reviewed at least every 24 hours; otherwise it ceases to be in force.

A psychiatrist who makes an order to prohibit or limit a patient's right of freedom of lawful communication must advise the Chief Mental Health Advocate within 24 hours

Any order made to prohibit or limit a patient's right of freedom of lawful communication must be recorded and the patient advised of the order and the reasons for it.

Refer to [Mental Health Act 2014](#) Section 262

5.2. Compliance monitoring

Each EMHS site or service executive director is to ensure compliance with this policy.

5.3. Legislative obligations

There are legislative obligations relating to this policy for which a statutory penalty is imposed for a breach.

A staff member of a mental health service must not ill-treat or wilfully neglect a person who is being provided with treatment or care by the mental health service.

Penalty: a fine of \$24,000 and imprisonment for two years.

A staff member of a mental health service who reasonably suspects that a reportable incident has occurred in relation to a person who is being provided with treatment or care by the mental health service must report it to:

- the person in charge of the mental health service; or
- the Chief Psychiatrist.

Penalty: a fine of \$6000.

Refer to [Mental Health Act 2014](#) Sections 253, 254

Refer to [Reporting Notifiable Incidents – Public Mental Health Services](#)

6. Legislation

- Mental Health Act 2014

7. Additional references

7.1. Department of Health policies

[Reporting Notifiable Incidents – Public Mental Health Services](#)

7.2. EMHS policies

Nil

Appendix A

[Appendix A Rights of Patients in Mental Health Care Principles](#)